



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 9, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202105658 (Incident Date: September 13, 2021) regarding Police Officer Oliva Carvajal-Hernandez, Tax No. 938182 (DADS No. 2022-27600)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter involving a single allegation of an improper threat to use force against Police Officer Carvajal-Hernandez.

In this matter, Officer Carvajal-Hernandez, in an effort to gain an uncooperative arrestee's compliance, stated to the arrestee that he would be drive-stunned with her conducted electrical weapon if he did not stop actively resisting the officers' attempts to place him into a police vehicle for transport to the stationhouse for arrest processing. The arrestee listened to Officer Carvajal-Hernandez and chose to comply with the officers' instructions and was placed into the vehicle safely. This successful effort to gain voluntary compliance and avoid the need to actually use force in a potentially dangerous situation does not warrant disciplinary action.

Therefore, based on the foregoing, Police Officer Carvajal-Hernandez will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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